Syllabus

ELLINGBURG *v.* UNITED STATES

CERTIORARI TO THE UNITED STATES COURT OF APPEALS FOR THE EIGHTH CIRCUIT

No. 24–482. Argued October 14, 2025—Decided January 20, 2026

The Mandatory Victims Restitution Act of 1996 requires defendants convicted of certain federal crimes to pay monetary restitution to victims. Although petitioner Ellingburg committed his crime *before* the MVRA's enactment, he was sentenced under the MVRA and ordered to pay $7,567.25 in restitution. Ellingburg raised an Ex Post Facto Clause challenge to his continued restitution obligation. The Eighth Circuit concluded that restitution under the MVRA is not criminal punishment subject to the Ex Post Facto Clause.

Held: Restitution under the MVRA is plainly criminal punishment for purposes of the Ex Post Facto Clause. Whether a law violates the Ex Post Facto Clause requires evaluating whether the law imposes a criminal or penal sanction as opposed to a civil remedy. That question is one "of statutory construction" that requires the Court to "consider the statute's text and its structure." *Smith* v. *Doe*, 538 U. S. 84, 92 (quotation marks omitted). When viewed as a whole, the MVRA makes abundantly clear that restitution is criminal punishment. The MVRA labels restitution as a "penalty" for a criminal "offense." 18 U. S. C. §3663A(a)(1). Only a criminal defendant convicted of a qualifying crime may be ordered to pay restitution. Restitution is imposed at sentencing for that offense together with other criminal punishments such as imprisonment and fines. And at the sentencing proceeding where restitution is imposed, the Government, not the victim, is the party adverse to the defendant. Further, the federal MVRA restitution regime is codified in Title 18, "Crimes and Criminal Procedure," and the statutory provisions authorizing restitution orders are contained in Chapter 232 of that Title, entitled "Miscellaneous Sentencing Provisions." A district court imposing restitution must follow the procedures applicable to other criminal penalties.

The Court's precedents have understood restitution under the MVRA to be criminal punishment. See *Manrique* v. *United States*, 581 U. S. 116, 118. And the Court's precedents on related issues further buttress the conclusion that MVRA restitution is criminal punishment. See *United States* v. *Bajakajian*, 524 U. S. 321, 328; *United States* v. *One Assortment of 89 Firearms*, 465 U. S. 354, 363–366.

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Finally, while Congress intended restitution under the MVRA to both punish offenders and compensate victims, victims cannot initiate or settle the restitution process as they would if it were a civil proceeding. The text and structure of the Act demonstrate that Congress intended restitution under the Act to impose criminal punishment. Pp. 165–169.

113 F. 4th 839, reversed and remanded.

KAVANAUGH, J., delivered the opinion for a unanimous Court. THOMAS, J., filed a concurring opinion, in which GORSUCH, J., joined, *post*, p. 169.

Amy Mason Saharia argued the cause for petitioner. With her on the briefs were *Lisa S. Blatt*, *Atticus W. DeProspo*, *Rohit P. Asirvatham*, and *R. Shane Roberts, Jr.*

Ashley Robertson argued the cause for the United States urging vacatur. On the briefs were *Solicitor General Sauer*, *Deputy Solicitor General Feigin*, *Acting Assistant Attorney General Galeotti*, and *Andrew W. Lang.*

John F. Bash, by appointment of the Court, 605 U. S. 908, argued the cause as *amicus curiae* in support of the judgment below. With him on the brief were *Nicholas J. Caluda*, *Alex Van Dyke*, and *Christopher G. Michel.**

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JUSTICE KAVANAUGH delivered the opinion of the Court.

Under the Mandatory Victims Restitution Act of 1996, defendants convicted of certain federal crimes must pay monetary restitution to the victims. That Act, known as the

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**Andrew T. Tutt*, *Dana Kagan McGinley*, and *Nicole L. Masiello* filed a brief for Restitution Scholars as *amici curiae* urging reversal. Briefs of *amici curiae* urging vacatur were filed for the Cato Institute et al. by *Matthew P. Cavedon*; for the Constitutional Accountability Center by *Elizabeth B. Wydra* and *Brianne J. Gorod*; for the NACDL et al. by *Lauren Willard Zehmer*, *Abby Wright*, *Hassan Ahmad*, and *Jeffrey T. Green*; and for Wayne A. Logan by *Krystal B. Swendsboe.*

Briefs of *amici curiae* were filed for Beth A. Colgan, *pro se*; for Jennifer Laurin by *Mahogane Reed*; and for Debra Ricketts-Holder by *Allyson N. Ho*, *Bradley G. Hubbard*, and *Paul G. Cassell.*